

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 05/22/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

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SPECIFY THE ISSUES to be argued.

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Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02021

CASE NAME: XIAO ZHENG VS. MICHAEL CISTERNINO

***HEARING ON MOTION IN RE: ATTORNEY'S FEES ON APPEAL OF DISCOVERY SANCTIONS ORDER
FILED BY: CISTERNINO, MICHAEL**

TENTATIVE RULING:

In order to assess further the arguments of the parties, the court requests clarity as to the exact math behind the claims of the moving party for an award between \$35,861 and \$59,220. The moving party is directed to file and serve a proposed order by noon on May 29, 2026 that lists a breakdown of the

requested fees and costs, including hourly rates and number of hours, for which motion or proceeding incurred, when incurred and when awarded or affirmed, **as line items in a table, with footnotes identifying the Declaration and Exhibit number that contains the support for each line item.** Moving party shall list the request for a lodestar multiplier as an additional line item for the court to consider.

The court on its own motion continues the hearing to **June 12, 2026 at 9:00 a.m.**

2. 9:00 AM CASE NUMBER: C24-01447
CASE NAME: PAMELA MILLER VS. COSTCO WHOLESALE CORPORATION
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: COSTCO WHOLESALE CORPORATION
TENTATIVE RULING:

Vacated on May 15, 2026 by the court.

3. 9:00 AM CASE NUMBER: C25-00377
CASE NAME: ANGELICA REYNOLDS VS. PEDRO ZARAGOZA
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

The unopposed motion of Plaintiff for Leave to File a Second Amended Complaint is granted.

1. Plaintiff is directed **to file the Second Amended Complaint** within 15 days of May 22, 2026.
2. Defendants shall have 30 days from the date of service of the Second Amended Complaint to file responsive pleadings

4. 9:00 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: LYFT, INC.,
TENTATIVE RULING:

Before the Court is a motion by defendant, Lyft, Inc. to compel the arbitration of plaintiff's claims against it. Both plaintiff and the other defendants oppose the motion. A court must order arbitration if it determines that a valid agreement to arbitrate exists. Here, an agreement exists, no valid defense to enforcement has been shown, and the claims at issue are within the scope of the agreement.

The motion is **granted**. Lyft and plaintiff, Jose Ramon Lopez-Valdez, are ordered to submit the matter to arbitration. This proceeding is hereby stayed. **The Court sets a case management conference on December 3, 2026, at 8:30 a.m.** for a status update on arbitration.

I. Background

Plaintiff brought this action against Lyft and other defendants after he incurred injuries in a collision between the vehicle in which he was a passenger, and other vehicles. Plaintiff alleges a single cause of negligence against all defendants. Lyft seeks to compel arbitration based on its contention that plaintiff agreed to Lyft's terms of service, which require arbitration of "ALL DISPUTES AND CLAIMS" between plaintiff and Lyft.

In support of its motion, Lyft presents evidence that its terms of service, to which plaintiff agreed, contain mandatory arbitration provisions. (See Declaration of Colton Carr in Support of Motion, hereinafter "Carr Decl.", Ex. 3, pp. 22-31, ¶17.)

Plaintiff opposes the motion, arguing the Court cannot order arbitration because there are third-party defendants in this case who are not bound to the arbitration agreement.

Defendants, D & A Carrier and Jose Noriega, also oppose the motion because they contend that their presence in the action brings this case within the scope of Code of Civil Procedure, § 1281.2, which permits a court to deny enforcement of an arbitration agreement under certain circumstances, discussed below.

On reply, Lyft argues the third-party defendants have no "standing" to oppose the motion because they are not parties to the contract. Lyft cites several cases, none of which specifically state that non-parties cannot oppose a motion to compel arbitration, though the contention may be correct. The Court has, in any event, considered the arguments made by the opposing defendants and nothing in that opposition changes the outcome here.

II. Standard

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) Accordingly, a petition to compel arbitration should be granted if the court determines that an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.)

The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove its defense. (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.)

III. Analysis

A. Existence of Agreement

In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

Here, Lyft provides evidence of plaintiff having electronically viewed and acknowledged the Arbitration Agreement. (Carr Decl., ¶ 11-18 [describing plaintiff's usage of platform and agreement to terms of service].) The scope of the agreement covers "ALL DISPUTES AND CLAIMS BETWEEN US" with limited exceptions not applicable here. It specifically describes, "any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: [the terms of use], the Lyft Platform, the Rideshare Services, the Lyft Services, [...] your relationship with Lyft, [...]"

state statutes, if any, addressing the same or similar subject matters, and all other federal and state statutory and common law claims.” This would encompass the claims made in this lawsuit and plaintiff does not argue otherwise. Plaintiff also does not deny agreeing to the terms of use.

Instead, plaintiff argues that there is no agreement between Lyft and the *other* defendants. The lack of an agreement with respect to third parties does not negate the existence of one with respect to Lyft and plaintiff. Lyft has met its burden to show the existence of an agreement to arbitrate.

B. Enforceability

1. Delegation of Enforcement Issues

Lyft asserts that it is the arbitrator who must decide whether the agreement is enforceable based on the delegation clause.

While challenges to the validity of the underlying contract are generally for the arbitrator to decide, challenges to the validity of the arbitration clause itself are generally resolved by the court in the first instance. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892.) Still, parties may agree to delegate authority to the arbitrator to decide threshold issues, but given the contrary presumption, evidence that the parties intended such a delegation must be “clear and unmistakable” before a court will enforce a delegation provision. (*Id.* at 892.) This test reflects a “heightened standard” of proof. (*Ibid.*)

Here, the agreement provides expressly that “[a]ll disputes concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator, except as expressly provided below.” The agreement proceeds to describe the exceptions, which are limited to class actions and PAGA claims, neither of which apply in this case. In any event, neither plaintiff nor third-party defendants argue that the delegation clause is not “clear and unmistakable.” The Court concludes that the argument is waived and the delegation clause is sufficient.

Even if the delegation clause were not clear and unmistakable, thereby leaving the enforceability question to the Court, the Court would agree with defendant that the FAA prevents it from declining to enforce the agreement based on third-party issues.

2. Applicability of the Federal Arbitration Act

Defendant asserts the FAA governs the agreement here by its express terms. The issue is critical because, in cases involving both parties and nonparties to an arbitration agreement, the discretion a court holds pursuant to the California Arbitration Act (“CAA”) is broader than its discretion under the FAA.

Plaintiff contends the motion must be denied pursuant to CAA, specifically Code of Civil Procedure, § 1281.2. That section provides, in relevant part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the **court shall order the petitioner and the respondent to arbitrate the controversy** if it determines that an agreement to arbitrate the controversy exists, **unless it determines** that:

[...]

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. [...]

[...]

If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding.

(Code Civ. Proc., § 1281.2.)

Here, there is little doubt that the action arises out of the same transaction (an automobile collision), and while Lyft disputes a possibility of conflicting rulings on common issues of law or fact, the case does appear to present such risk.

Still, plaintiff's assertion that the motion "Must be Denied" based on the above statute (Opposition, 3:13) is incorrect. First, the lack of an agreement with respect to third parties does not negate the existence of one with respect to plaintiff, as already concluded above. Secondly, while the statutory provision cited by plaintiff allows the Court a *menu* of options; it does not *mandate* denial of a motion to compel arbitration. Finally, the procedural rules in the CAA are inapplicable where the FAA's procedural rules govern, as explained below.

As stated in *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1117-1118:

Code of Civil Procedure section 1281, echoing the FAA's language and its policy favoring arbitration, likewise provides that a written arbitration agreement "is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." ***Unlike the federal statute, however, California law does not require a court to stay judicial proceedings pending the completion of arbitration in all cases.*** Under section 1281.2(c), if a party to an arbitration agreement is also a party to related litigation with a third party that creates the risk of conflicting rulings on a common issue of law or fact, "the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding." (*Ibid.*) Thus, while the FAA does not "deal with the special practical problems that arise in multiparty contractual disputes when some or all of the contracts at issue include agreements to arbitrate[,] California has taken the lead in fashioning a legislative response to this problem, by giving courts authority to consolidate or stay arbitration proceedings ... in order to minimize the potential for

contradictory judgments.” [citation].

Here, the second sentence of the agreement states: “This agreement to arbitrate (“Arbitration Agreement”) is governed by the Federal Arbitration Act (“FAA”); but if the FAA is inapplicable for any reason, then this Arbitration Agreement is governed by the laws of the State of Delaware, including Del. Code tit. 10, § 5701 et seq., without regard to choice of law principles.” (Carr Decl., Ex. 3, p. 22, ¶ 17.) None of the parties here advocate for applying Delaware law. Delaware law is also not necessary to consider here because the FAA’s invocation is controlling.

Typically, the “FAA’s *procedural* provisions (9 U.S.C. §§ 3, 4, 10, 11) do not apply unless the contract contains a choice-of-law clause expressly incorporating them.” (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 345 [citation omitted].) However, when parties specify, as they did here, that the agreement is governed by the FAA, the statement is sufficiently broad to encompass both the procedural and substantive provisions of the FAA. (*Victrola 89, LLC, supra*, 46 Cal.App.5th at 355 [holding that parties may voluntarily elect to have the FAA govern enforcement of the arbitration agreement, and that “pursuant to the FAA” was broad enough to displace state procedural rules].)

Because the agreement here provides expressly that the FAA governs, and because the Court holds this includes both procedural and substantive terms, the Court has fewer options than those available under Code of Civil Procedure section 1281.2. This is because, based on preemption principles, “the court’s only option in these circumstances is to stay the court proceeding and compel the arbitration.” (*Rodriguez, supra*, 136 Cal.App.4th at 1115.)

Third-party defendants’ argument that the claims here are not subject to arbitration based on an exception in the agreement (based on Code of Civil Procedure § 1281.2), is meritless. The language in the agreement excepts from arbitration certain “types of claims” including “claims that may not be subject to arbitration as a matter of generally applicable law not preempted by the FAA.” The exception for “claims not subject to arbitration” appears in a list of categorical exceptions such as small claims actions, PAGA actions, workers’ compensation claims, state disability insurance claims, unemployment insurance claims, and sexual assault claims. These are particular categories of claims. Code of Civil Procedure § 1281.2 does not describe any particular category of claims.

Accordingly, the motion must be granted. Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the parties.

5. 9:00 AM CASE NUMBER: C25-02220

CASE NAME: MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. VS. NANCY YEE

***HEARING ON MOTION IN RE: STRIKE PLTFS STRIKE REQUEST FOR ENTRY AND/OR VACATE CLERK
DEFAULT**

FILED BY: 2246 LAKE CREST COURT LAND TRUST

TENTATIVE RULING:

Introduction

Before the Court is Defendants Nancy Ngyuen Yee and Robert Frank Yee’s motion for an order:

- 1) Striking Plaintiff's Request for Entry of Default filed October 27, 2025, and/or
- 2) Preemptively vacating any default entered thereafter, as void under CCP §473(d), for lack of valid service.

Defendants Nancy Ngyuen Yee and Robert Frank Yee's Motion to Strike or Vacate Default for the five listed entities ("Entity Defendants") and trusts in the Declaration of Robert Frank Yee:

1. 2246 Lake Crest Court Land Trust
2. RK Legacy Holdings
3. Ahtohallan Holdings Incorporated
4. Ex Amino Aeternum Express Trust
5. Noble Invicta Aeternum Express Trust

Defendants Nancy Ngyuen Yee and Robert Frank Yee bring their Motion on the grounds that Plaintiffs failed to effectuate valid service of process on any of the Entity Defendants.

Defendants Nancy Ngyuen Yee and Robert Frank Yee filed their motion on November 17, 2025, while Plaintiffs Mortgage Electronic Registration Systems, INC.; and Newrez, LLC DBA Shellpoint Mortgage Servicing FKA Specialized Loan Servicing, LLC opposed the motion on February 20, 2026. Defendants filed a reply on February 27, 2026.

For the reasons explained below, **Defendants Nancy Ngyuen Yee and Robert Frank Yee's Motion to Strike or Vacate Default is DENIED.**

Procedural Background

This lawsuit was filed on August 4, 2025. Plaintiffs determined that Robert Frank Yee and Nancy Nguyen Yee were authorized to accept service on behalf of all named Defendants, either individually, as an authorized agent, or as an attorney-in-fact. (Mika Decl. ¶¶ 4-5, Ex. 1.)

Plaintiffs contend that on September 24, 2025, all parties, except for Nancy Nguyen Yee were served via personal service on Robert Frank Yee. (Mika Decl. ¶ 7, Ex. 2.) Defendant Robert Frank Yee confirmed his identity with the process server and told the process server he would not accept service on behalf of any business entity or trust. (Yee Declaration ¶¶ 3-4.) The process server placed the summons and complaints on the ground outside the residence and took photos of them. (Yee Declaration ¶¶ 5-6.)

Since previous attempts on Nancy Nguyen Yee had been unsuccessful, Plaintiffs contend Nancy Nguyen Yee was served by substitute service. (Mika Decl. ¶ 8, Ex. 3.) Courtesy copies were also mailed to Nancy Nguyen Yee. (*Id.*) Defendant Nancy Ngyen Yee disputes that she received courtesy copies by mail.

Plaintiffs' position is that since all parties could be served via Robert Frank Yee, all parties were aware of the lawsuit. (Mika Decl. ¶ 9.) Only Robert Frank Yee and Nancy Nguyen Yee filed a responsive pleading via a demurrer to the complaint. (*Id.*) As a result, on October 27, 2025, Plaintiffs filed a request for default as to all defendants except Robert Frank Yee and Nancy Nguyen Yee, and entry of the default was entered that same day. (Mika Decl. ¶ 10.)

Defendants Robert Frank Yee and Nancy Nguyen Yee now seek to set aside the defaults on behalf of the other entity and trust Defendants.

Legal Standard

“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery.” (Code Civ. Proc., § 415.10.) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 [internal citation omitted].)) CCP § 473(d) allows a court to set aside a void judgment without any mention of a time limit. (*Lee v. An* (2008) 168 Cal.App.4th 558, 563; see also *Heidary v. Yadollahi* (2002) 99 Cal.App.4th 857, 862.)

The trial court has broad discretion to vacate the judgment and/or the clerk’s entry of default that preceded it. That discretion can be exercised only if the moving party (defendant) establishes a proper ground for relief, by the proper procedure, and within the time limits below. (See *Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) Motions under CCP § 473(d) to vacate a judgment allegedly void for lack of service, based on extrinsic evidence, must be brought within a “reasonable time” after entry of default. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 212, 225-226 [disapproving prior authority that applied 2-year time limit to § 473(d) motions to vacate].)

A judge has no statutory authority under CCP § 473(d) to set aside a judgment that is not void. (*Cruz v. Fagor Am., Inc.* 146 Cal.App.4th at 495–496; A. [§ 1.49] Judge’s Inherent Authority to Set Aside Void Judgment; Party’s CCP § 473(d) Motion, Cal. Judges Benchbook Civ. Proc. After Trial § 1.49.) Only void orders, not voidable orders, may be set aside under CCP § 473(d). (D. [§ 6.56] Motion for Relief From Void Order Under CCP § 473(d), Cal. Judges Benchbook Civ. Proc. Before Trial § 6.56.) An order is void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without considering extrinsic evidence. (*Pittman v. Bec, Apartments, Ltd.* (2018) 20 Cal.App.5th 1009, 1021.) There is no time limit for attacking an order that is void on its face. (*Id.*) If the invalidity can be shown only by extrinsic evidence, such as declarations or testimony, the order is not void on its face and must be challenged within the 6-month time limit prescribed by CCP § 473(b). (D. [§ 6.56] Motion for Relief From Void Order Under CCP § 473(d), Cal. Judges Benchbook Civ. Proc. Before Trial § 6.56.)

Substantial compliance with the service of summons statutes may be sufficient to defeat a motion under CCP § 473(d). (*Gibble v. Car-Lene Research, Inc.* (1998) 67 Cal.App.4th 295, 313; *Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434, 1443-1444.)

Analysis

Defendants Nancy Nguyen Yee and Robert Frank Yee Cannot Represent Any of the Entity Defendants

Business and Professions Code § 6125 prohibits anyone who is not an active member of the State Bar of California from practicing law. Code of Civil Procedure § 128(a)(5) gives courts authority to prevent unauthorized practice of law in proceedings before them.

Defendants Robert Frank Yee and Nancy Nguyen Yee attempt to strike or vacate default of the five

Entity Defendants listed in the Declaration of Robert Frank Yee. (R.F. Yee Decl. ¶ 9.)

Entity Defendants

“The rights and liabilities of corporations are distinct from the persons composing it. Thus, a corporation cannot appear in court except through an agent. In purporting to represent the corporation in court, that agent is engaged in the practice of law. Only persons who are active members of the State Bar may practice law.” (*Clean Air Transp. Sys. v. San Mateo County Transit Dist.* (1988) 198 Cal.App.3d 576, 578.) A lay person who purports to represent a corporation is engaged in the unlawful practice of law. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729-30.) This reasoning applies by analogy to unincorporated associations. (*Clean Air Transp. Sys. v. San Mateo County Transit Dist.* (1988) 198 Cal.App.3d 576, 579.)

Defendants RK Legacy Holdings and Ahtohallan Holdings Incorporated are both business entities. Defendant Ahtohallan Holdings is incorporated, and it is unclear from the papers what type of entity RK Legacy Holdings is. Regardless, both Defendants RK Legacy Holdings and Ahtohallan Holdings cannot be represented by a lay person, and both must be represented an active member of the State Bar. Defendants Nancy Ngyuen Yee and Robert Frank Yee are not practicing attorneys in California and cannot represent Defendants RK Legacy Holdings and Ahtohallan Holdings in this matter.

Trust Defendants

Generally, a trustee who is not a lawyer cannot appear as a self-represented litigant in legal proceedings to protect assets of the trust. “A non-attorney trustee who represents the trust in court is representing and affecting the interests of the beneficiary [or the settlor] and is thus engaged in the unauthorized practice of law.” (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 549; see also Bus. & Prof. Code, § 6125.)

However, “a trustee litigating on behalf of a trust in which he as the settlor has designated himself the sole beneficiary is not representing the interests of others. The interest he represents is his own.” (*Auliso v. Bancroft* (2014) 230 Cal.App.4th 1516, 1524.) In other words, pro per parties only have the right to represent a trust when they are the only settlor, beneficiary and trustee. (See *Boshernitsan v. Bach* (2021) 61 Cal. App. 5th 883, 894 [Although generally non-attorney trustees cannot appear in propria persona because they are representing the interests of others, a trustee who is also the only settlor and beneficiary “does not appear in court proceedings concerning the trust in a representative capacity.”].)

Here, each of the trusts are comprised of multiple parties and therefore must be represented by an attorney. First, the 2246 Lake Crest Court Land Trust lists RK Legacy Holdings, Inc. as the beneficiary and Ahtohallan Holdings, Inc. as the trustee. EX AMINO AETERNUM EXPRESS TRUST d/b/a EX AMINO AETERNUM lists Nancy Nguyen Yee as settlor and Bercy De La Cruz as trustee. NOBLE INVICTA AETERNUM EXPRESS TRUST d/b/a NOBLE INVICTA AETERNUM lists Robert Frank Yee as settlor and Bercy De La Cruz as trustee and the Court notes that Defendant Robert Frank Yee signs on her behalf as power of attorney.

Accordingly, Robert Frank Yee and Nancy Nguyen Yee cannot represent the interests any of the five listed defaulted entities 2246 Lake Crest Court Land Trust, RK Legacy Holdings, Ahtohallan Holdings

Incorporated, Ex Amino Aeternum Express Trust, or Noble Invicta Aeternum Express Trust.

Conclusion

For the reasons analyzed above, For the reasons explained below, **Defendants Nancy Ngyuen Yee and Robert Frank Yee's Motion to Strike or Vacate Default is DENIED.**

6. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO CARAPIAS' CLAIMS FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

FILED BY: AZAMEY, MARIAM

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for judgment on the pleadings ("MJOP"). The MJOP relates to Defendant and Cross-Complainant Maureen Carapia and Jorge Carapia (collectively, "Cross-Complainants")'s claims for intentional and negligent infliction of emotional distress.

For the following reasons, the MJOP is **granted**, with leave to amend.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell*

v. School Ins. Program for Employees (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:295.)

Analysis

Cross-Defendants argue that Cross-Complainants' emotional distress claims fail as a matter of law; the Court takes each cause of action in turn.

Negligent Infliction of Emotional Distress

Cross-Defendants argue that the parties do not have a special preexisting relationship which would give rise to a heightened duty of care required for negligent infliction of emotional distress. (MJOP at § III(A).)

As to Cross-Complainants' claim for NIED, the subject duty and breach are uncertain. A claim for NIED is not an independent tort, but simply the tort of negligence (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072), the elements of which are "duty, breach of duty, causation, and damages." (*Ess v. Eskaton Properties, Inc.* (2002) 97 Cal.App.4th 120, 126.)

The Cross-Complaint does not identify a duty or breach under this cause of action; instead, they incorporate by reference all the preceding paragraphs of the pleading. To the extent the claim may be based on Cross-Defendants' alleged conduct under the nuisance/trespass causes of action, a claim for NIED does not lie where, as here, the alleged injury is to property, and there are no facts alleged that demonstrate the existence of a special relationship of trust and confidence between the parties. (See *Sher Leiderman* (1986) 181 Cal.App.3d 867, 883-884 (*Sher*); see also *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 985 ["unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests."].) While the Cross-Complaint reflects that the parties are neighbors (see XC at ¶¶ 1,2), the mere ownership of adjoining lots does not in fact give rise to a special relationship of trust or confidence requiring a heightened duty of care. (*Sher*, at p. 884.) Accordingly, Cross-Complainants fail to state a claim for negligent infliction of emotional distress.

The MJOP on the cause of action for negligent infliction of emotional distress is **granted**.

Intentional Infliction of Emotional Distress

Cross-Defendants argue that the allegations of the Cross-Complaint are insufficient to state a cause of action for intentional infliction of emotional distress.

" "[T]o state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." ' ' ' (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.) " 'Conduct, to be " 'outrageous' " must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.' " (*Huntingdon Life Sciences, Inc. v. Stop*

Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.)

The allegations of the Cross-Complaint are sparse. In addition to alleging generally that Cross-Defendants “[made] threats to remove real and personal property of the Cross-Complainants from the Subject Property,” the Cross-Complainants allege that “[o]n November 12, 2021, Cross-Defendants, and each of them, wrongfully entered onto the Subject Property and started to destroy the real and personal property of Cross-Complainants to the point that police had to be called to stop Cross-Defendants and their agents from the continued destruction of Cross-Complainants['] private property.” (XC at ¶ 20.) These allegations are inadequate to state a claim for intentional infliction of emotional distress.

The MJOP on the cause of action for intentional infliction of emotional distress is **granted with leave to amend. Amended pleadings must be filed and served within 30 days of service of notice of entry of this order.**

7. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO CARAPIAS' CROSS-COMPLAINT**

FILED BY: AZAMEY, MARIAM

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, “Cross-Defendants”)’s motion for judgment on the pleadings (“MJOP”). The MJOP relates to Defendant and Cross-Complainant Maureen Carapia and Jorge Carapia (collectively, “Cross-Complainants”)’s entire Cross-Complaint.

Cross-Defendants move on the grounds that Cross-Complainants failed to join an indispensable party (Defendant and Cross-Complainant Pamela Parker).

For the following reasons, the MJOP is **denied**.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs’ Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement

by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:295.)

Analysis

Cross-Defendants argue that the Carapias' Cross-Complaint should be dismissed for failure to join Parker, who they contend is a necessary and indispensable party under Code of Civil Procedure section 762.010.

"An indispensable party is one whose interest in the subject matter of the litigation would be injured or affected if he was not joined and the plaintiff was granted the affirmative relief sought. [Citations.] This may occur 'where a number of persons have undetermined interests in the same property, ... and one of them seeks, in an action, to recover the whole, to fix his share, or to recover a portion claimed by him. The other persons with similar interests are indispensable parties. The reason is that a judgment in favor of one claimant for any part of the property or fund would necessarily determine the amount or extent which remains available to the others. Hence, any judgment in the action would inevitably affect their rights.' [Citation]." (*Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1494-1495.)

"'... [D]efendants are [also] entitled, if they so desire, to have all the parties having an interest in the subject-matter before the court, in order that its judgment shall be a final determination of the whole matter, and leave nothing to be done by piecemeal.'" (*Cain v. State Farm Mut. Auto. Ins. Co.* (1975) 47 Cal.App.3d 783, 795 [citations omitted].)

The Code of Civil Procedure describes indispensable parties at section 389:

A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.

(CCP § 389(a).)

The Code of Civil Procedure continues:

If [such] a person ... cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. The factors to be considered by the court include: (1) to what extent a judgment rendered in the person's absence might be prejudicial to him or those already parties; (2) the extent to which, by protective provisions in the judgment, by the shaping of relief, or other measures, the prejudice can be lessened or avoided; (3) whether a judgment rendered in the person's absence will be adequate; (4) whether the plaintiff or cross-complainant will have an adequate remedy if the action is dismissed for nonjoinder.

(*Id.* at § 389(b).)

An objection that a suit lacks indispensable parties is “so fundamental, it need not be raised by the parties themselves; the court may, of its own motion, dismiss the proceedings, or refuse to proceed, until these indispensable parties are brought in.” (*Bank of California Nat. Ass’n v. Superior Court in and for City and County of San Francisco* (1940) 16 Cal.2d 516, 522.)

Cross-Defendants argue that “[d]espite the Carapias seeking to extinguish Parker’s 12.5-foot-wide easement over the Carapia Property, Parker is not named as a party in the Carapias’ Cross-Complaint.” (MJOP at 2:21-22.) That the Cross-Complaint seeks such relief is not entirely clear to the Court, nor is it clarified by Cross-Complainants’ opposition, which states in part that “Azamey/Unger claim[] that Parker and the Carapias are apparently adverse to each other and that Carapias should have named Parker in said Cross-Complaint on the grounds that Carapia and Parker have hostile claims to the title or efficacy of the easement.” (Opp. at 3:13-16.) The Court has reviewed the Carapias’ Cross-Complaint and the only easement referenced is the one Cross-Defendants seek to enforce by their First Amended Complaint. (See XC at ¶ 8.) The prayer for relief seeks “judgment that Cross-Complainants are the fee simple owner of all right, title, and interest in and to the described Subject Property free from any claim of easements or rights **on the part of Cross-Defendants**[.]” (XC Prayer for Relief at ¶ 1 [emphasis added].) Cross-Defendants repeatedly reference Parker’s “12.5 of easement over the Carapia property” (see, e.g. MJOP at 3:6) but that appears to be the depth of their own easement over the Carapia’s property (excluding the 7.5 feet over the Parker property). (See FAC at ¶ 8 and Fig. 2.) The Court is not aware of a separate Parker easement over the Carapia property.

It is true that a quiet title judgment cannot be entered in the absence of all parties with an interest in the property at issue. (See *Washington Mutual Bank v. Blechman* (2007) 157 Cal.App.4th 662, 667 [“A person is an indispensable party to litigation “if his or her rights must necessarily be affected by the judgment.””].) While Parker may be a conditionally necessary party (given her interest in the Azamey/Unger easement), it is not clear that she is an indispensable party to the Carapias’ Cross-Complaint such that it cannot proceed without her participation. Furthermore, she is a full participant in this litigation, given that she is a named Defendant and Cross-Complainant in her own right. There is no risk of inconsistent obligations with respect to the subject easement.

The MJOP on this ground is **denied**.

8. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO PARKER'S CLAIMS FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

FILED BY: AZAMEY, MARIAM

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for judgment on the pleadings ("MJOP"). The MJOP relates to Defendant Pam Parker ("Cross-Complainant" or "Parker")'s claims for intentional and negligent infliction of emotional distress.

For the following reasons, the MJOP is **granted, with leave to amend**.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:295.)

Analysis

Cross-Defendants argue that Cross-Complainant's emotional distress claims fail as a matter of law; the Court takes each cause of action in turn.

Negligent Infliction of Emotional Distress

Cross-Defendants argue that the parties do not have a special preexisting relationship which would give rise to a heightened duty of care required for negligent infliction of emotional distress. (MJOP at § III(A).)

As to Cross-Complainant's claim for NIED, the subject duty and breach are uncertain. A claim for NIED is not an independent tort, but simply the tort of negligence (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072), the elements of which are "duty, breach of duty, causation, and damages." (*Ess v. Eskaton Properties, Inc.* (2002) 97 Cal.App.4th 120, 126.)

The Cross-Complaint does not identify a duty or breach under this cause of action; instead, Parker incorporates by reference all the preceding paragraphs of the pleading. To the extent the claim may be based on Cross-Defendants' alleged conduct under the nuisance/trespass causes of action, a claim for NIED does not lie where, as here, the alleged injury is to property, and there are no facts alleged that demonstrate the existence of a special relationship of trust and confidence between the parties. (See *Sher Leiderman* (1986) 181 Cal.App.3d 867, 883-884 (*Sher*); see also *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 985 ["unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests."].) While the Cross-Complaint reflects that the parties are neighbors (see XC at ¶¶ 2,3), the mere ownership of adjoining lots does not in fact give rise to a special relationship of trust or confidence requiring a heightened duty of care. (*Sher*, at p. 884.) Accordingly, Cross-Complainant fails to state a claim for negligent infliction of emotional distress.

The MJOP on the cause of action for negligent infliction of emotional distress is **granted with leave to amend**.

Intentional Infliction of Emotional Distress

Cross-Defendants argue that the allegations of the Cross-Complaint are insufficient to state a cause of action for intentional infliction of emotional distress.

" '[T]o state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.' " (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.) " 'Conduct, to be " 'outrageous' " must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.' " (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

The allegations of the Cross-Complaint are sparse. The Cross-Complaint alleges within the trespass cause of action that "in 2021, Cross-Defendants, and each of them, have physically trespassed onto the Subject Property and made threatening statements and remarks about how Cross-Defendants, and each of them, were going to remove the real and personal property from the ownership and

possession of Cross-Complainant.” (XC at ¶ 10.) This allegation is inadequate to state a claim for intentional infliction of emotional distress.

The MJOP on the cause of action for intentional infliction of emotional distress is **granted with leave to amend. Amended pleadings must be filed and served within 30 days of service of notice of entry of this order.**

9. 9:00 AM CASE NUMBER: MSC22-00430

CASE NAME: A.S. VS APPLIED BEHAVIOR

***HEARING ON MINOR'S COMPROMISE**

FILED BY: S., A.

TENTATIVE RULING:

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor’s Claim lodged with the Court on November 18, 2025.

10. 9:00 AM CASE NUMBER: N25-2284

CASE NAME: CLAIM OF:MARIAN OAMILDAMARIAN OAMILDA

***HEARING ON MINOR'S COMPROMISE**

FILED BY: IBALDEZ OAMILDA, MARIVIC

TENTATIVE RULING:

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor’s Claim lodged on February 10, 2026.

11. 9:00 AM CASE NUMBER: N25-2287

CASE NAME: CLAIM OF:MAVERICK OAMILDAMMAVERICK OAMILDA

***HEARING ON MINOR'S COMPROMISE**

FILED BY: IBALDEZ, MARIVIC

TENTATIVE RULING:

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor’s Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on February 10, 2026.

12. 9:00 AM CASE NUMBER: N26-0262
CASE NAME: PETITION OF:J.G. WENTWORTH ORIGINATIONS, LLC
HEARING IN RE: TRANSFER OF PAYMENT RIGHTS
FILED BY:

TENTATIVE RULING:

The request is denied.

Discovery Law & Motion

13. 9:01 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION FOR DISCOVERY TO QUASH DEFENDANTS SUBPOENA TO MERLIN LAW GROUP, P.A. AND REQUEST FOR MONETARY SANCTIONS**
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.

TENTATIVE RULING:

The matter is referred to the Discovery Referee appointed by Court order signed May 4, 2026 in this case.

Issue Conferences

14. 10:00 AM CASE NUMBER: MSC21-00582
CASE NAME: WHITE VS SUTTER DELTA MEDICAL CENTER
ISSUE CONFERENCE
FILED BY:

TENTATIVE RULING:

Parties to appear.